heels of a similarly controversial one: a law regulating inter-faith marriages. The Opposition spots a pattern and says the ruling dispensation is steadily recasting political discourse around religious identity. What makes the present bill specially contentious is Rajasthan's demographic and social reality. Despite sporadic incidents, the state has largely remained free of sustained religious polarisation. Muslims constitute around nine per cent of the population and have limited political dominance, with only six MLAs now. Muslim-majority pockets are confined to specific urban localities rather than entire constituencies or regions.

Takeaways

- **Rajasthan brings a bill to guard against distress property sale during riots**
- **Congress says the bill itself 'disturbs' the state's pattern of relative peace**

Rajasthan's communal episodes have rarely resulted in large-scale Hindu migration. More often, it is Muslims who relocate—from mixed or Hindu-dominated neighbourhoods to densely populated Muslim localities that are typically more expensive and infrastructurally stressed, such as Jaipur's Walled City. Analysts say segregated living in Rajasthan is driven more by caste and class, and question the claim that religious "population imbalance" is the core issue.

If enacted, critics feel, the bill will grant the government discretionary powers to label localities as "disturbed". What they foresee: selective enforcement, with political priorities or local rivalries at play rather than objective threat assessments. Even if used sparingly, they add, it legitimises the idea that demographic change is a law-and-order problem. This could actually deepen segregation and harden attitudes, besides injecting uncertainty into real estate markets. They call it the institutionalisation of mistrust.

LEGISLATING MISTRUST

Defending the bill, parliamentary affairs minister Jogaram Patel says existing mechanisms are insufficient to address situations envisaged under the law. Education minister Madan Dilawar describes the bill as a long-due corrective—a tool to "curb the intentions of rioters". The government is duty-bound to prevent demographic distortions caused by unrest, he adds. The BJP also invokes Gujarat—the only state where such a law exists presently.

The Congress sees a different design. Says former chief minister Ashok Gehlot: "The BJP is out to turn the land of *Padharo Mhare Desh* into a 'disturbed state'. This is deeply shameful. There are no circumstances here that justify such a law." Pointing to how the BJP dismantled the Department of Peace and Non-Violence his government set up, Gehlot says it's actively promoting polarisation instead "to hide its failures". State Congress chief Govind Singh Dotasra echoes the charge, asking: "Who will decide which area is disturbed, on what basis?"

Legal experts in the Congress say Rajasthan has enough provisions to deal with riots and mob violence. They contend that terms such as "population imbalance" are constitutionally nebulous and could infringe upon fundamental rights, including equality before law and the right to property. ■



ANI

By **Avaneesh Mishra**

IT WOULDN'T SEEM, JUDGING FROM THE crowds gathered near Dehradun's Parade Ground on February 8, that three years had passed since the Ankita Bhandari murder jolted Uttarakhand out of its age of innocence. Or indeed, that the case had run its legal course, resulting in at least one high-profile conviction.

Why then was a mahapanchayat convened by a body tellingly named 'Ankita Nyay Yatra Sanyukt Sangharsh Manch', a march for justice for Ankita, bringing together Opposition leaders, activists and civil society groups? Why did common citizens mill around as Ankita's parents spoke from the dais? Why was a state-wide bandh held on January 11 on the demand for a Supreme Court-monitored CBI probe?

Before one gets to the answers, it may be worth revisiting the case that triggered this swirl of questions. Only that can explain how profoundly the case has affected the state's populace, why Uttarakhand is reacting as if its moral cocoon had been peeled off, and its very self-image as a society built